

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #11	CCRB Case #: 201801833	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/06/2018 1:30 PM	Location of Incident: In the backyard of § 87(2)(b)	Precinct: 123	18 Mo. SOL 9/6/2019	EO SOL 9/6/2019	
Date/Time CV Reported Tue, 03/06/2018 5:40 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 03/06/2018 5:40 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. LT Ryan McGuinness	00000	938991	123 PCT
2. POM Salvatore Oliveri	22331	933641	123 PCT
3. POM James Amundsen	05013	941346	123 PCT
4. POM Christophe Payne	24311	945389	123 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Evensen	15094	923807	123 PCT
2. POF Annaruth Legare	21690	945914	123 PCT
3. POM Jason Sarnicki	03740	933331	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Ryan McGuinness	Abuse: Lieutenant Ryan McGuinness forcibly removed § 87(2)(b) to the hospital.	[REDACTED]
B.POM Salvatore Oliveri	Force: Police Officer Salvatore Oliveri used physical force against § 87(2)(b)	[REDACTED]
C.POM James Amundsen	Force: Police Officer James Amundsen used physical force against § 87(2)(b)	[REDACTED]
D.POM Christophe Payne	Force: Police Officer Christophe Payne used physical force against § 87(2)(b)	[REDACTED]
E.LT Ryan McGuinness	Abuse: Lieutenant Ryan McGuinness threatened § 87(2)(b) with the use of force.	[REDACTED]
F.LT Ryan McGuinness	Force: Lieutenant Ryan McGuinness used physical force against § 87(2)(b)	[REDACTED]
G.LT Ryan McGuinness	Discourtesy: Lieutenant Ryan McGuinness acted discourteously toward § 87(2)(b)	[REDACTED]

Officer(s)	Allegation	Investigator Recommendation
H.L.T Ryan McGuinness	Force: Lieutenant Ryan McGuinness used physical force against § 87(2)(b)	

Case Summary

On March 6, 2018, at approximately 5:40 p.m., § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On March 6, 2018, at approximately 1:30 p.m., § 87(2)(b) was at his home, located at § 87(2)(b) in Staten Island, when his daughter, § 87(2)(b) § 87(2)(b) had a life-threatening medical emergency (and subsequently died the following week). § 87(2)(b) became distraught, went into his backyard, yelled, and threw patio furniture and potted plants. EMTs that responded to the scene for § 87(2)(b)'s daughter asked for officers to respond as they believed that § 87(2)(b) was an emotionally disturbed person (EDP). PO James Amundsen, PO Salvatore Oliveri, PO Peter Evensen, PO Christopher Payne, and Lieutenant Ryan McGuinness of the 123rd Precinct responded to the location. Lt. McGuinness told § 87(2)(b) that he had to go to the hospital (**Allegation A – Abuse of Authority**, § 87(2)(g) § 87(2)(b) refused to go to the hospital, and attempted to reenter the house to see his daughter. PO Amundsen, PO Oliveri, PO Evensen, and PO Payne took § 87(2)(b) to the ground and placed him into handcuffs. (**Allegation B – Force**, § 87(2)(g) (**Allegation C – Force**, § 87(2)(g) (**Allegation D – Force**, § 87(2)(g) Lt. McGuinness pointed his Taser at § 87(2)(b) (**Allegation E – Abuse of Authority**, § 87(2)(g) After § 87(2)(b) was handcuffed, he was rolled onto his side and Lt. McGuinness allegedly kicked him in his back near his kidney area (**Allegation F – Force**, § 87(2)(g) § 87(2)(b) was then sat onto his buttocks and Lt. McGuinness laughed at § 87(2)(b) and poked him in the chest repeatedly (**Allegation G – Discourtesy**, § 87(2)(g) While § 87(2)(b) was being wheeled out of the yard on the gurney, Lt. McGuinness approached § 87(2)(b) allegedly and punched him in his right-side ribs (**Allegation H – Force**, § 87(2)(g)

There is no video evidence in this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Lieutenant Ryan McGuinness forcibly removed § 87(2)(b) to the hospital.

Allegation B – Force: Police Officer Salvatore Oliveri used physical force against § 87(2)(b)

Allegation C – Force: Police Officer James Amundsen used physical force against § 87(2)(b)

Allegation D – Force: Police Officer Christophe Payne used physical force against § 87(2)(b)

Allegation E – Abuse of Authority: Lieutenant Ryan McGuinness threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) became distraught after his daughter had a medical episode and subsequently went into his backyard and destroyed his own property, included throwing potted plants, patio furniture, and wood. § 87(2)(b)'s daughter subsequently passed away a week after the incident.

§ 87(2)(b) testified that officers responded to his backyard and told him that he needed to go to the hospital. § 87(2)(b) spoke with the officers and told them repeatedly he wanted to go inside

and see his daughter and he repeatedly asked everyone to leave. § 87(2)(b) § 87(2)(b)'s in-home nurse of 15 years, came outside and said aloud that § 87(2)(b)'s daughter was breathing again. This news made § 87(2)(b) want to go inside, and he ran through a wall of officers. PO Oliveri, PO Amundsen, and PO Payne grabbed § 87(2)(b) by his shoulders from behind and shoved him down, and at least one officer kicked his leg from behind. This force caused § 87(2)(b) to fall down onto his stomach. § 87(2)(b) did not know if the officers had given him commands before they pulled him to the ground; he described the scene as "confusing" and a "melee." The officers pulled § 87(2)(b)'s arms behind his back and handcuffed him, and in the process, PO Payne raised his right arm so that while his elbow was bent behind his back his hand was nearly able to touch the back of his neck. § 87(2)(b) later suffered a lot of bruising to his right arm and he tore a muscle on the right side of his chest. § 87(2)(b) was then removed to the hospital **(Board Review 01)**.

Medical records from § 87(2)(b) were obtained. § 87(2)(b) was discharged from the hospital on § 87(2)(b). On § 87(2)(b), § 87(2)(b) returned to the hospital for the bruising sustained to his right arm. It is noted that he was on Xarelto, a blood thinner, for a blood clot in his leg. § 87(2)(b) sustained ecchymosis to his arm from mid upper arm down to forearm and abrasions on his hand **(Board Review 02)**.

§ 87(2)(b) testified that she was inside the house when § 87(2)(b)'s daughter's medical episode began. § 87(2)(b) became angry, got in the EMTs' faces, cursed at them, and made statements such as "You better tell me she's breathing." § 87(2)(b) then went into the yard. § 87(2)(b) was inside taking care of § 87(2)(b) when § 87(2)(b) was taken to the ground. She looked outside briefly and saw officers on top of § 87(2)(b) however, she did not pay attention as she was mainly focused on getting the EMTs up to speed on § 87(2)(b)'s ailments and medications.

§ 87(2)(b) § 87(2)(b) § 87(2)(b)'s neighbor who lived across the street, provided a statement but did not witness anything that occurred in § 87(2)(b)'s yard as he was not in the yard.

Lt. McGuinness testified that he decided that § 87(2)(b) was an EDP and needed to be removed to the hospital due to the fact that he was irrational, irate, screaming, and breaking his own property. § 87(2)(b) did not threaten to hurt the officers or himself at any point; however, Lt. McGuinness believed that § 87(2)(b) could hurt either himself or someone else while he was breaking things and was alarmed by § 87(2)(b)'s behavior. ESU was on their way to the location and Lt. McGuinness informed the officers to wait for ESU before attempting to handcuff § 87(2)(b) as he was contained in the yard and there was no reason to rush. However, § 87(2)(b) § 87(2)(b) charged the officers and the officers subsequently grabbed him. § 87(2)(b) resisted being placed into handcuffs and he was taken to the ground. Lt. McGuinness drew his Taser, turned it on, and pointed it at § 87(2)(b). Lt. McGuinness drew and pointed his Taser because he thought he was going to have to use it; however, the officers handcuffed § 87(2)(b) quickly and the Taser was not necessary. Lt. McGuinness felt that he would have to use his Taser because § 87(2)(b) § 87(2)(b) was violently resisting by flailing his arms, refusing to be handcuffed, and struggling with the officers. Lt. McGuinness thought that § 87(2)(b)'s intention was to get away from the officers, not to hurt them.

§ 87(2)(g). They were called to the location to remove § 87(2)(b) to the hospital. They believed that § 87(2)(b) was an EDP and needed to go to the hospital based on the fact that he was angry, was pacing back and forth, and was destroying property. § 87(2)(b) attempted to walk toward the house when the officers placed § 87(2)(b) onto the ground. Neither EMT § 87(2)(b) nor EMT § 87(2)(b) saw how § 87(2)(b) was taken to the ground. Once § 87(2)(b) was on the ground, he resisted being handcuffed by attempting to keep his arms underneath his body. The officers grabbed § 87(2)(b)'s arms and pulled them behind his back and he was handcuffed. Neither EMT § 87(2)(b) nor EMT § 87(2)(b) believed that the officers used excessive force while handcuffing § 87(2)(b).

§ 87(2)(g).
While the officers understood that § 87(2)(b) was dealing with a difficult situation, the officers stated that based on his actions, his anger and his destruction of property, and the fact that § 87(2)(b) refused to calm down, that they believed § 87(2)(b) needed to be removed to the hospital; though Lt. McGuinness made the final decision. The officers attempted to keep § 87(2)(b) away from the house, as he was being disruptive to the EMTs who were helping his daughter. § 87(2)(b) attempted to walk through the officers into the house and they grabbed § 87(2)(b)'s arms. § 87(2)(b) began resisting and flailing his arms, so the officers took him to the ground by grabbing his arms and pulling him to the ground. § 87(2)(b) was taken to the ground in a controlled manner and was not slammed onto the ground. PO Oliveri held § 87(2)(b)'s left arm and PO Payne held § 87(2)(b)'s right arm. PO Oliveri did not push § 87(2)(b)'s arm up behind his back toward his neck, and stated that doing so would be counterproductive to handcuffing him.

NYPD Patrol Guide Procedure 221-13 defines an EDP as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious physical injury or death to himself or others (**Board Review 03**).

NYPD Patrol Guide Procedure 221-01 states that an officer may use force when it is reasonable to ensure the safety of a member of service, a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of departmental policy. When appropriate and consistent with personal safety, members of service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, members of service will use only the reasonable force necessary to gain control or custody of a subject. Members of service shall not use any level of force to punish, retaliate, or coerce a subject to make statements (**Board Review 04**).

NYPD Patrol Guide Procedure 221-08 states that a conductive electrical weapon (CEW) can be an effective means of subduing aggressive suspects and EDPs, and that it should only be used on

persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present (**Board Review 05**).

According to the Food and Drug Administration, a side effect of Xarelto is easy bruising (**Board Review 06**).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation F – Force: Lieutenant Ryan McGuinness used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after the officers handcuffed him, that they rolled him onto his right side, and Lt. McGuinness kicked him in his back in his right kidney area.

Lt. McGuinness stated that he did not kick § 87(2)(b) and that he did not use any force on § 87(2)(b) after he was handcuffed.

§ 87(2)(b) EMT § 87(2)(b) EMT § 87(2)(b) PO Oliveri, PO Payne, and PO Amundsen were all consistent in their statement that they did not see Lt. McGuinness kick § 87(2)(b) § 87(2)(b).

§ 87(2)(g)
[REDACTED]

Allegation G – Discourtesy: Lieutenant Ryan McGuinness acted discourteously toward

§ 87(2)(b) testified that after he was handcuffed and sitting down waiting for the EMT § 87(2)(b) and EMT § 87(2)(b) to place him onto the gurney, that Lt. McGuinness poked him in the middle of

his chest hard with his finger three or four times. Each time Lt. McGuinness poked him, § 87(2)(b) told Lt. McGuinness not to do that, but Lt. McGuinness would laugh and do it again.

§ 87(2)(b) EMT § 87(2)(b) and EMT § 87(2)(b) were all consistent in their statements that they did not see Lt. McGuinness poke and laugh at § 87(2)(b).

Lt. McGuinness testified that after § 87(2)(b) was handcuffed, that he went over to § 87(2)(b) and sat him up by grabbing his shoulders and pushing him up. Lt. McGuinness did not want § 87(2)(b) to lie on the handcuffs as he was concerned that § 87(2)(b) would hurt his wrists. After Lt. McGuinness picked § 87(2)(b) up, § 87(2)(b) became fixated on Lt. McGuinness. He began yelling and cursing at Lt. McGuinness, stating, “Fuck you McGuinness, you can’t fucking touch me, don’t fucking touch me.” Lt. McGuinness informed § 87(2)(b) that he could in fact touch him, and that he was trying to sit him up because he did not want him lying on the handcuffs as he could hurt himself. § 87(2)(b) repeated to Lt. McGuinness not to touch him. Lt. McGuinness repeated to § 87(2)(b) again that he could touch him. Lt. McGuinness and § 87(2)(b) repeated this interaction several times over one or two minutes. § 87(2)(b) became increasingly irritated at Lt. McGuinness after he explained that he could touch § 87(2)(b) however, after Lt. McGuinness told him several times, § 87(2)(b) stopped talking which Lt. McGuinness believed indicated that § 87(2)(b) was calm. When asked if Lt. McGuinness thought that explaining several times to § 87(2)(b) that he could in fact touch him was deescalating the situation, Lt. McGuinness replied that he was not saying it in an antagonistic manner, and that he was just trying to explain to § 87(2)(b) that he could not lay on the handcuffs. Lt. McGuinness did not poke § 87(2)(b). Lt. McGuinness did not laugh at § 87(2)(b) while explaining that he could touch him.

While § 87(2)(b) was being rolled out of the yard on the gurney, he passed Lt. McGuinness, and began cursing at Lt. McGuinness and telling him again that he was not allowed to touch him. Lt. McGuinness put his hand on § 87(2)(b)’s shoulder, and told him again that he could touch him. Lt. McGuinness put his hand on § 87(2)(b)’s shoulder. Lt. McGuinness touched § 87(2)(b) after he requested not to be touched to “get his point across” and to calm § 87(2)(b) down as he was agitated. Lt. McGuinness stated that touching § 87(2)(b) worked to calm § 87(2)(b) down and § 87(2)(b) stopped yelling as a result. Lt. McGuinness was not trying to antagonize § 87(2)(b) but rather explain that he legally can touch him under certain circumstances. Lt. McGuinness stated that touching § 87(2)(b) after he requested not to be touched did not escalate the situation, that it deescalated the situation as § 87(2)(b) calmed down as a result.

PO Amundsen, PO Oliveri, and PO Payne corroborated § 87(2)(b)’s statement that Lt. McGuinness did repeatedly poke and laugh at § 87(2)(b).

PO Amundsen stated that Lt. McGuinness was being disrespectful to § 87(2)(b) and was speaking to him un-empathetically given the situation with § 87(2)(b)’s daughter. PO Amundsen stated, “Just the way he was speaking to him, his demeanor, when situations like this, you deescalate as much as possible in a short amount of time to make everyone safer, and I believe that Lt. McGuinness was in fact maybe agitating him more and escalating the situation to the point where it shouldn’t have been.” Lt. McGuinness spoke to § 87(2)(b) in a rude and disrespectful tone, instead of speaking to him calmly and respectfully and attempting to calm § 87(2)(b).

§ 87(2)(b) down and make him feel better. Lt. McGuinness approached § 87(2)(b) poked him in the left shoulder multiple times, and stated “I’m a New York City Police Department Lieutenant I can do what I want, and I’m touching you.” § 87(2)(b) became agitated, which PO Amundsen felt was understandable given Lt. McGuinness’ conduct. PO Amundsen stated “He was agitated. I would be, you know, when you have a supervisor, a police officer let alone a lieutenant doing that to you and speaking to you in that manner, it’s, I was embarrassed.”

PO Oliveri stated that Lt. McGuinness told § 87(2)(b) “I’m the lieutenant, you have to wait.” Although Lt. McGuinness did not curse at § 87(2)(b) PO Oliveri would not describe the conversation as courteous and respectful. The conversation was not reflective of the conduct of a supervisor, or a position of authority, and that there was no reason to go back and forth with someone who is going through something in their personal life. Lt. McGuinness poked § 87(2)(b) in his shoulder with his pointer and ring fingers approximately 2-3 times. PO Oliveri thought it was odd and inappropriate that Lt. McGuinness was poking § 87(2)(b) and thought that he was doing it to antagonize § 87(2)(b) and escalate the situation.

PO Payne stated that Lt. McGuinness laughed at § 87(2)(b) and told him, “I’m a lieutenant I can do whatever I want.” Lt. McGuinness poked § 87(2)(b) in either the chest or the shoulder approximately 5-7 times and stated, “I’m touching you. I’m touching you.” § 87(2)(b) became more upset and began bickering with Lt. McGuinness. PO Payne felt that he and the other police officers were doing a good job at calming § 87(2)(b) down, and that Lt. McGuinness was doing the opposite, and upsetting § 87(2)(b) more.

NYPD Patrol Guide Procedure 203-09 states that police officers must be courteous and respectful when dealing with civilians **(Board Review 07)**.

NYPD Patrol Guide Procedure 221-13 states that when there is time to de-escalate, that all time necessary to ensure the safety of all individuals concerned will be used, and that officers are to avoid any action which might agitate or provoke the EDP, if possible **(Board Review 03)**.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation H – Force: Lieutenant Ryan McGuinness used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he was placed onto the gurney, and EMT § 87(2)(b) and EMT § 87(2)(b) wheeled him out of the yard, that Lt. McGuinness approached him and punched him in his right side ribs.

Lt. McGuinness stated that he did not punch § 87(2)(b)

§ 87(2)(b) EMT Santos, EMT § 87(2)(b) PO Oliveri, PO Payne, and PO Amundsen were all consistent in their statement that they did not see Lt. McGuinness punch § 87(2)(b) § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party **(Board Review 09)**.
- Lt. McGuinness has been a member-of-service for 13 years and has been a subject in three additional CCRB complaints and six allegations, none of which have been substantiated.
§ 87(2)(g)
- PO Oliveri has been a member-of-service for 14 years and has been a subject in seven CCRB complaints and 11 allegations, none of which have been substantiated. § 87(2)(g)
- PO Amundsen has been a member-of-service for 12 years. This is the first CCRB complaint to which he has been a party.
- PO Payne has been a member-of-service for 10 years and has been a subject in three additional CCRB complaints and three allegations, none of which have been substantiated.
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- On December 12, 2018, an inquiry was filed with the New York City Comptroller's Office to locate a notice of claim for § 87(2)(b) Results are pending. **(Board Review 10)**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Squad No.: 11

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date